

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Wasserman	Team: Team # 8	CCRB Case #: 200913501	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 08/21/2009 9:30 PM	Location of Incident: Crown Street between Nostrand Avenue and New York Avenue	18 Mo. SOL 2/21/2011	Precinct: 71
Date/Time CV Reported Mon, 08/31/2009 2:16 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/31/2009 2:16 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Clifford Louis	02793	927098	071 PCT
2. POM Herve Francois	06793	928315	071 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Vincent Dambrosio	01329	925160	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Clifford Louis	Abuse: SGT Clifford Louis supervised the stop of § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . SGT Clifford Louis	Discourtesy: SGT Clifford Louis spoke obscenely to § 87(2)(b)	B . Unsubstantiated
C . SGT Clifford Louis	Abuse: SGT Clifford Louis frisked § 87(2)(b)	C . Unsubstantiated
D . SGT Clifford Louis	Abuse: SGT Clifford Louis searched § 87(2)(b)	D . Unsubstantiated
E . SGT Clifford Louis	Abuse: SGT Clifford Louis threatened to arrest § 87(2)(b)	E . Unsubstantiated
F . POM Herve Francois	Abuse: PO Herve Francois frisked § 87(2)(b)	F . Alleged Victim Uncooperative
G . POM Herve Francois	Abuse: PO Herve Francois searched § 87(2)(b)	G . Alleged Victim Uncooperative
H . POM Herve Francois	Abuse: PO Herve Francois searched § 87(2)(b) s car.	H . Unsubstantiated
I . POM Herve Francois	Discourtesy: PO Herve Francois spoke obscenely to § 87(2)(b)	I . Unsubstantiated
J . POM Herve Francois	Abuse: PO Herve Francois threatened § 87(2)(b) with the use of force.	J . Unsubstantiated

Case Summary

§ 87(2)(b) filed a complaint with the CCRB over the phone on August 31, 2009, on behalf of § 87(2)(b). At about 9:30 p.m. on August 21, 2009, § 87(2)(b) and § 87(2)(b) were stopped by Sgt. Clifford Louis and PO Herve Francois of the 71st precinct in front of 310 Crown Street in Brooklyn. The following allegations resulted.

Allegation A—Abuse of Authority: SGT Clifford Louis supervised the stop of § 87(2)(b)

and § 87(2)(b) § 87(2)(g)

it is recommended that **Allegation A** be **Exonerated**.

Allegation B—Discourtesy: SGT Clifford Louis spoke obscenely to § 87(2)(b)

Allegation I—Discourtesy: PO Herve Francois spoke obscenely to § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation B** and **Allegation I** be **Unsubstantiated**.

Allegation C—Abuse of Authority: SGT Clifford Louis frisked § 87(2)(b) § 87(2)(g)

it is recommended that **Allegation C** be **Unsubstantiated**.

Allegation D—Abuse of Authority: SGT Clifford Louis searched § 87(2)(b) § 87(2)(g)

it is recommended that **Allegation D** be **Unsubstantiated**.

Allegation E—Abuse of Authority: SGT Clifford Louis threatened to arrest § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation E** be **Unsubstantiated**.

Allegation F—Abuse of Authority: PO Herve Francois frisked § 87(2)(b)

Allegation G—Abuse of Authority: PO Herve Francois searched § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation F** and **Allegation G** be closed **Victim Uncooperative**.

Allegation H—Abuse of Authority: PO Herve Francois searched § 87(2)(b)

car. § 87(2)(g)

, it is recommended that **Allegation H** be **Unsubstantiated**.

Allegation J—Abuse of Authority: PO Herve Francois threatened § 87(2)(b)

with the use of force. § 87(2)(g)

it is recommended that **Allegation J** be **Unsubstantiated**.

Results of Investigation

Civilian Statement(s)

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old black male with black hair and brown eyes who is § 87(2)(b) § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on October 15, 2009 (encl. 6B-6D). § 87(2)(b) provided phone statements to the CCRB on September 8, 2009 (encl. 6A), and November 13, 2009 (encl. 6G). § 87(2)(g)

On Friday, August 21, 2009, at about 9:30 p.m., § 87(2)(b) was sitting with three male friends, identified as § 87(2)(b) and § 87(2)(b) on the steps of the Beth Rivkah Yeshiva at 310 Crown Street in Brooklyn. One of § 87(2)(b)'s friends was drinking a beer, but § 87(2)(b) was not. § 87(2)(b)'s car, a black Mercedes-Benz SUV, was double-parked in front of 310 Crown Street.

The windows of § 87(2)(b)'s SUV are tinted and were rolled up all the way. Inside a locked compartment below the passenger's seat, there was a .22 Beretta handgun, which belongs to § 87(2)(b) and he had registered in Georgia. This locked compartment opens with the key to the ignition and is not visible from outside the vehicle, as it is located beneath the seat. § 87(2)(b) was unaware that this handgun was in the car at the time of this incident.

After § 87(2)(b) had been sitting on the steps of the Beth Rivkah school for about twenty minutes, two officers in street clothes, identified as PO Herve Francois and Sgt. Clifford Louis of the 71st precinct, drove up and approached. PO Francois asked for the IDs of § 87(2)(b) and his friends, which they provided. After § 87(2)(b) had repeatedly asked Sgt. Louis if he could ask a question, Sgt. Louis told § 87(2)(b) "You got a smart-ass mouth. I told you that you can't ask me a question." Sgt. Louis then told § 87(2)(b) to "Stand the fuck up."

Sgt. Louis grabbed § 87(2)(b) by both arms around the elbow and stood him up. Sgt. Louis then told § 87(2)(b) "Turn the fuck around". Sgt. Louis swung § 87(2)(b) around by his arms, so that § 87(2)(b) was facing the wall. Sgt. Louis patted § 87(2)(b) down and put his hands into § 87(2)(b)'s pants pockets, waistband and shoes. § 87(2)(b) said that he hadn't done anything wrong and Sgt. Louis told him again, "You got a smart fucking mouth." Sgt. Louis told § 87(2)(b) "Don't make me arrest you for resisting arrest." § 87(2)(b) was not moving around while he was against the wall, but he was talking.

After § 87(2)(b) was frisked, PO Francois asked him, "Whose car is that?" referring to § 87(2)(b)'s SUV. § 87(2)(b) told PO Francois that the owner was going to come right down and move the car. PO Francois stated, "We'll see about that" and walked over to the SUV. PO Francois shined his flashlight in the car windows. PO Francois then attempted to open various doors, walking around the car and trying each in turn. PO Francois found that the driver's door was unlocked.

PO Francois opened up the driver's door and searched the arm rest, the glove compartment, the front and back seats of the car. § 87(2)(b) could see this as PO Francois opened all the car doors. § 87(2)(b) stood up and approached PO Francois, coming about three to five feet away from PO Francois without walking into the street. § 87(2)(b) told PO Francois that what PO Francois was doing was illegal and he did not consent. PO Francois told § 87(2)(b) "Sit the fuck down." When § 87(2)(b) did not comply, PO Francois told him, "Sit the fuck down before I mace you" or "Do you want me to fucking mace you?" PO Francois took out a canister of pepper spray and started shaking it. § 87(2)(b) went back and sat down on the steps.

§ 87(2)(b) called his girlfriend, § 87(2)(b) and asked her to come as soon as possible. § 87(2)(b) arrived a couple of minutes later, while the car search was still occurring. At about this time, a large number of plainclothes and uniformed officers responded to the scene. Shortly thereafter, § 87(2)(b) heard a "boom," which he thought was from the locked compartment containing his gun opening. An officer said, "We got an apple." From the context, § 87(2)(b) inferred that an "apple" referred to the discovery of his firearm. PO Francois came over, grabbed § 87(2)(b) by his arms and handcuffed him. § 87(2)(b) was then transported to the 71st precinct.

Complainant/Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old black female with black hair and brown eyes § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on October 15, 2009 (encl. 7A-7C). On August 21, 2009, at about 9:30 p.m., § 87(2)(b) received a phone call from § 87(2)(b) asking her to come to 310 Crown Street in Brooklyn. § 87(2)(b) went to this location with her cousin § 87(2)(b) her friend § 87(2)(b) and her § 87(2)(b)-old daughter § 87(2)(b)

When § 87(2)(b) arrived, there were multiple officers present, including Sgt. Vincent D'Ambrosio, PO Herve Francois and Sgt. Clifford Louis of the 71st precinct. § 87(2)(b) saw § 87(2)(b) and his friends sitting on the steps in front of the Beth Rivkah school. § 87(2)(b) looked over and saw all the side doors and the back door open on § 87(2)(b)'s SUV. There were at least two officers, including Sgt. Louis and a white male officer in plainclothes that she can not further describe, searching this vehicle. § 87(2)(b) could not articulate which areas of the car in particular the officers were searching; they were just searching the car. One of the officers said they had "found an apple". PO Francois went back over to § 87(2)(b) picked him up and handcuffed § 87(2)(b) and § 87(2)(b)

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old black male.

CCRB Testimony

§ 87(2)(b) provided a phone statement to the CCRB on October 23, 2009 (encl. 9). At about 9:30 p.m. on August 21, 2009, § 87(2)(b) was hanging out with § 87(2)(b) and § 87(2)(b) on the steps of 310 Crown Street when PO Francois and Sgt. Louis approached. The officers came straight to § 87(2)(b) who had an empty cup of alcohol next to him on the ground, and asked him what he was doing. No one else was drinking.

The officers told § 87(2)(b) to stand up and asked him if he was drinking. § 87(2)(b) confirmed that he had been drinking. PO Francois patted § 87(2)(b) down and searched him "everywhere," including his pockets. § 87(2)(b) said "Yo, why you searching him?" and PO Francois said, "Stand up, I'm going to search you too." PO Francois also searched § 87(2)(b) § 87(2)(b)

§ 87(2)(b)'s car was double-parked in the street. PO Francois walked over to the car and opened one of the doors, which was unlocked. PO Francois then started searching "everywhere" in the car. PO Francois spent about forty five minutes searching the car, leaving and then coming back. After a while, PO Francois said "we found an apple juice". The officers then came over and arrested § 87(2)(b) and his three friends. § 87(2)(b) was taken to the 71st precinct, where he received a summons and was released. This summons has since been dismissed.

§ 87(2)(b) missed two scheduled interviews at the CCRB without providing notice or calling to reschedule.

Witness: § 87(2)(b)

CCRB Testimony

§ 87(2)(b) provided a phone statement to the CCRB on October 22, 2009 (encl. 8). On August 21, 2009 at about 9:30 p.m., § 87(2)(b) went to 310 Crown Street with § 87(2)(b). When she arrived on scene, all the compartments and the trunk of § 87(2)(b)'s car were open. § 87(2)(b) thought that at least two black male officers, including PO Francois and Sgt. Louis, were searching § 87(2)(b)'s car. § 87(2)(b) could not see where in the car the officers were searching, as her back was turned to the car. However, she saw PO Francois and Sgt. Louis by the car and officers later said "we got him, we got him!" and arrested § 87(2)(b) § 87(2)(b)

§ 87(2)(b) was unwilling to come to the CCRB for an interview. § 87(2)(g)

Attempts to Contact Civilians

§ 87(2)(b) provided the investigation with phone numbers and street names, but not addresses, for § 87(2)(b) ("§ 87(2)(b)" and § 87(2)(b) § 87(2)(b). Between October 23, 2009, and November 4, 2009, five phone calls were made to § 87(2)(b) leaving messages each time. Two possible addresses were obtained for § 87(2)(b) from BADs, but a search of Lexis-Nexis failed to obtain an apartment number and all please-call letters were returned to sender. The investigation was told that there was no one who answered to "§ 87(2)(b)" at the number provided for § 87(2)(b). Please-call letters were sent to § 87(2)(b) on November 23, 2009, and November 30, 2009, and were not returned. A Verizon subpoena for § 87(2)(b)'s address had negative results. Neither § 87(2)(b) nor § 87(2)(b) ever contacted the investigation.

NYPD Statement(s):

Subject Officer: PO Herve Francois

- PO Herve Francois is a § 87(2)(b) -old black male with black hair and brown eyes § 87(2)(b)
- PO Francois worked from 7:30 p.m. on August 21, 2009 to 4:05 a.m. on August 22, 2009. PO Francois was in plainclothes and assigned to anti-crime with Sgt. Louis in RMP no. 229, which is a Black Chevrolet.

Memobook

PO Francois had the following memo book entries relating to this incident (encl. 10A-10D). At 9:30 p.m. on August 21, 2009: “4 males stopped in front of 310 Crown Street. § 87(2)(b)

§ 87(2)(b) who is wanted for robbery on an I-card § 87(2)(b) § 87(2)(b) & § 87(2)(b)

§ 87(2)(b) All four men were drinking alcohol & cranberry juice Grey Goose & Hennessy. They were all sitting down on the school steps and § 87(2)(b) was getting drinks from the vehicle which was double-parked at the location. When A/O approached the vehicle § 87(2)(b) stated that was his car & when looked into the vehicle there was a handgun in plain view underneath the passenger seat in drawer with an extra magazine loaded.

All four men were taken into custody to the 71 station house. At 9:43 p.m. on August 21, 2009: “4 under. ECT notified & respond[ed].” At 3:20 a.m. on August 22, 2009: “Both § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) were released on summons #§ 87(2)(b)

Arrest/Complaint Report

§ 87(2)(a) 160.50

Affidavits

§ 87(2)(a) 160.50

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Summonses

§ 87(2)(a) 160.50

CCRB Testimony

PO Francois was interviewed at the CCRB on December 23, 2009 (encl. 10L-10N). On August 21, 2009 at about 9:30 p.m., PO Francois was driving and Sgt. Louis was in the passenger seat. As they drove on Crown Street, PO Francois observed a double-parked car playing loud music and § 87(2)(b) and § 87(2)(b) drinking nearby on the steps of a school. PO Francois noticed that § 87(2)(b) resembled an individual wanted on an I-card.

PO Francois did not stop, but instead circled around the block, then parked about four car lengths away on the opposite side of the street from the males and observed them for three to five minutes. While PO Francois and Sgt. Louis sat in their car, PO Francois observed all four males drinking what appeared to be alcohol. They had cups and bottles of Grey Goose vodka, Hennessy

and cranberry juice. PO Francois confirmed at this time that § 87(2)(b) was the individual whose photo he had seen on an I-card.

PO Francois and Sgt. Louis exited their vehicle and approached the males. As they approached, § 87(2)(b) placed his hand on the left side of his waistband and held it there for a second. PO Francois thought that § 87(2)(b) was trying to retrieve something or place something there. There was a bulky rectangular or square bulge where § 87(2)(b) reached, between the waistband and the stomach, which PO Francois thought might be the butt of a gun.

PO Francois asked the males why they were drinking in public and disturbing the peace. § 87(2)(b) asked the officers why they were harassing him. PO Francois asked § 87(2)(b) if he had any weapons on him. § 87(2)(b) replied, "If I did, what would you do?" After § 87(2)(b) said this, PO Francois told § 87(2)(b) to place his hands in the air and § 87(2)(b) complied. PO Francois frisked § 87(2)(b) patting down the exterior of his clothing from the top down. PO Francois did not go into § 87(2)(b)'s pockets or underneath his waistband. § 87(2)(b) was "somewhat wasted" and "verbally combative."

Following the frisk of § 87(2)(b) PO Francois frisked the other three males in the same way. PO Francois frisked these males for his safety as there were four individuals and only two officers, PO Francois did not notice any bulges on § 87(2)(b) or § 87(2)(b). Sgt. Louis stood guard while PO Francois frisked the males, but did not frisk anyone.

PO Francois asked to whom the SUV belonged. § 87(2)(b) stated that it was his car. PO Francois asked why it was double-parked. § 87(2)(b) stated that he would move it. PO Francois walked over to the SUV with the intent of issuing a parking summons. The back windows of the SUV were tinted but PO Francois did not know if the front windows were tinted as they were rolled down. PO Francois shined his flashlight in the car and saw an open drawer containing a handgun in front of the front passenger seat. This drawer goes underneath the cushion of the front passenger seat and was slid out. PO Francois then told Sgt. Louis, "I've got a green apple here." A "green apple" is a code phrase they use for firearms.

The officers placed all four males in handcuffs and called for other officers to provide transportation. After all four males were in handcuffs, PO Francois conducted an inventory search of § 87(2)(b)'s car at the scene by himself. PO Francois gained entrance into the car without keys as the driver's side door was unlocked. The responding officers, which included Sgt. D'Ambrosio, transported the four arrestees to the station house. PO Francois never took out his pepper-spray or threatened to "fucking mace" § 87(2)(b). PO Francois did not use profanity during this incident and neither did Sgt. Louis.

PO Francois submitted to the investigation two photos that he took at the scene on August 21, 2009, after he handcuffed § 87(2)(b) and his friends. The first photo is taken from outside the front passenger side and shows the interior of § 87(2)(b)'s car, with a handgun visible in a drawer (encl. 10O). This drawer is slid out from underneath the passenger seat, lying on the floor in front of the passenger seat. PO Francois stated that this was the position the drawer was in at the time that he initially observed it. However, the interior of the car appears to have already been searched at the time that the photo was taken, as the glove compartment and central console are open and their contents appear to be on the driver's seat. The second photo is a close-up of the drawer, which contains a black handgun and an extra magazine (encl. 10P).

Subject Officer: SGT Clifford Louis

- Sgt. Clifford Louis is a § 87(2)(b)-old black male with black hair and brown eyes § 87(2)(b).
- Sgt. Louis worked from 7:30 p.m. on August 21, 2009 to 4:14 a.m. on August 22, 2009. Sgt. Louis was assigned to anti-crime, was in plainclothes and was working with PO Francois in an unmarked black auto, RMP no. 229.

Memobook

Sgt. Louis had the following memo book entries relating to this incident (encl. 11A-11B). At 9:30 p.m. on August 21, 2009: “4 males stopped f/o 310 Crown Street.” At 9:43 p.m. on August 21, 2009: “4 under in regards.”

CCRB Testimony

Sgt. Louis was interviewed at the CCRB on December 22, 2009 (encl. 11C-11E) and February 2, 2010 (encl. 11F-11G). § 87(2)(g)

At about 9:30 p.m. on August 21, 2009, Sgt. Louis and PO Francois noticed four males with alcohol in public view. As the officers approached, § 87(2)(b) reached down towards his waist with his right hand and adjusted his waistband. This made Sgt. Louis suspect that § 87(2)(b) had a weapon. Sgt. Louis did not notice a bulge at § 87(2)(b)'s waistband.

Sgt. Louis frisked § 87(2)(b). § 87(2)(b) was “mouthing off” while Sgt. Louis frisked him, but did not physically resist. Neither Sgt. Louis nor PO Francois threatened to arrest § 87(2)(b) for resisting arrest. Sgt. Louis had no other reason to frisk § 87(2)(b) other than the fact that he adjusted his waistband as the officers approached. § 87(2)(b) did not say anything before Sgt. Louis frisked him. Sgt. Louis frisked § 87(2)(b) by patting his waist and then going down his legs. Sgt. Louis did not place his hands underneath § 87(2)(b)'s waistband or go into his pockets.

A couple of the other three males started walking away from the officers, but stopped when PO Francois told them to halt. Sgt. Louis described these males as “looking nervous”, but could not elaborate on what they were doing or saying that made them seem nervous. After Sgt. Louis frisked § 87(2)(b), PO Francois frisked the other three males. PO Francois asked the males who owned the SUV. § 87(2)(b) said it was his vehicle. PO Francois walked over to the car, then immediately told Sgt. Louis that he had found “an apple,” or firearm. Sgt. Louis later saw the firearm which PO Francois had spotted, lying on the floor in front of the front passenger seat of § 87(2)(b)'s car. Sgt. Louis observed this firearm through the windows of the car, as both the windows and the door of the vehicle were closed. Sgt. Louis did not think the front windows of the SUV were tinted, but the back windows were tinted.

Sgt. Louis and PO Francois called for back-up and handcuffed the four males, who were then transported to the station house. They were initially all charged with § 87(2)(a) 160.50 but this was eventually only charged to § 87(2)(b) as he admitted it was his firearm at the station house. § 87(2)(b)'s car was not searched at the scene, but an inventory search was later done at the precinct. PO Francois did not take out his pepper-spray, shake his pepper-spray or threaten to “fucking mace” § 87(2)(b). Neither Sgt. Louis nor any other officer used profanity.

Witness Officer: SGT Vincent D'Ambrosio

- Sergeant Vincent D'Ambrosio is a § 87(2)(b)-old white male with black hair and brown eyes § 87(2)(b)
- Sgt. D'Ambrosio worked from 7:15 p.m. on August 21, 2009, to 4:12 a.m. on August 22, 2009. Sgt. D'Ambrosio was working as the conditions sergeant, in uniform, and assigned to an unmarked grey Ford Crown Victoria with PO Gonzalez and PO Tehan.

CCRB Testimony

Sgt. D'Ambrosio was interviewed at the CCRB on January 7, 2010 (encl. 12C-12D). Sgt. D'Ambrosio did not have any memo book entries regarding this incident (encl. 12A-12B).

On August 21, 2009, at about 9:30 p.m., Sgt. D'Ambrosio responded to a call for additional units at 310 Crown Street in Brooklyn by Sgt. Louis. At the time that he arrived on scene, Sgt. Louis and PO Francois had several individuals already handcuffed. Sgt. D'Ambrosio never participated in a vehicle search, as there was no car search that occurred.

NYPD Document(s)

Property Voucher

A black metal .22 caliber Beretta, two magazines and twenty bullets were vouchered as arrest evidence in connection with the arrest of § 87(2)(b) (encl. 17).

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)]
[§ 87(2)(b)]
[§ 87(2)(b)]
[§ 87(2)(b)]
[§ 87(2)(b)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of November 30, 2009, with regard to this incident (encl. 21D-21E).

Civilian(s) Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) or § 87(2)(b) (encl. 3A-3B).

Subject Officer(s) CCRB History

- Sgt. Louis has been a member of the service for nine years and had an abuse of authority—retaliatory summons allegation substantiated in case no. 200705078, for which he received instructions (encl. 2A-2B).

- PO Francois has been a member of the service for eight years and had three abuse of authority allegations substantiated in case no. 200403680, for which he received instructions (encl. 2C).

Conclusion

Identification of Subject Officer(s)

PO Francois and Sgt. Louis both admitted their involvement in this incident. As Sgt. Louis was the supervisor on scene, the stop was pled against him. Although both PO Francois and Sgt. Louis stated that they frisked § 87(2)(b) the frisk and search allegations were pled against Sgt. Louis, as he was identified as the subject of these allegations by § 87(2)(b). While multiple officers were alleged to have searched § 87(2)(b)'s car, this allegation was pled against PO Francois as he was the officer who allegedly opened § 87(2)(b)'s car door and began to search the vehicle.

Investigative Findings and Recommendations

Allegation A—Abuse of Authority: SGT Clifford Louis supervised the stop of § 87(2)(b) **and** § 87(2)(b)

It is undisputed that Sgt. Louis and PO Francois forcibly stopped § 87(2)(b) and § 87(2)(b). The officers stated that all four males were drinking alcohol in public, while § 87(2)(b) and § 87(2)(b) stated that only § 87(2)(b) was drinking. § 87(2)(g)

Furthermore, PO Francois gave a detailed description in his memo book, written at the time of this incident, even including the brands of alcohol (Hennessy and Grey Goose vodka) being drunk by the males. § 87(2)(g)

According to People v. Debour, an officer is allowed to forcibly stop an individual if they have “reasonable suspicion” that said individual is committing a crime (encl. 1A). Consumption of alcohol in public is a violation of NYC Administrative Code section 10-125 (encl. 1B). It is therefore recommended that **Allegation A** be **Exonerated**.

Allegation B—Discourtesy: SGT Clifford Louis spoke obscenely to § 87(2)(b)

Allegation I—Discourtesy: PO Herve Francois spoke obscenely to § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Louis called him a “smart ass,” told him to “stand the fuck up” and said that he had a “smart fucking mouth” while PO Francois told him to “sit the fuck down” and threatened to “fucking mace” him. Sgt. Louis and PO Francois denied using profanity. § 87(2)(g)

It is therefore recommended that **Allegation B** and **Allegation I** be **Unsubstantiated**.

Allegation C—Abuse of Authority: SGT Clifford Louis frisked § 87(2)(b)

Sgt. Louis and PO Francois both stated that they frisked § 87(2)(b) and that § 87(2)(b) reached for his waistband as they approached. PO Francois further stated that § 87(2)(b) had a bulge at his waistband that he thought might be the butt of a firearm and that when he asked § 87(2)(b) if he had a weapon, § 87(2)(b) replied: “If I did, what would you do?” § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Barry Kamins states that to lawfully frisk an individual “an officer must have reasonable suspicion to believe that a suspect committed a crime and a reasonable suspicion that a subject is armed and dangerous” (encl. 1C-1D). Kamins, New York Search and Seizure, 2-80 to 2-81 (2008 ed.). Kamins further states: “A defendant will frequently reach toward a pocket or place a hand in a pocket. In combination with *other* factors, this movement may justify a frisk...However, if an officer frisks a defendant *solely* because the subject reaches into a pocket or places his hand in his waist area, a frisk would be improper [*italics his*]” (enc. 1E-1F). *Ibid.*, 2-94 to 2-95.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation C** be **Unsubstantiated**.

Allegation D—Abuse of Authority: SGT Clifford Louis searched § 87(2)(b)

§ 87(2)(b) stated that Sgt. Louis placed his hands inside his pockets while frisking him. Sgt. Louis denied this. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation D** be **Unsubstantiated**.

Allegation E—Abuse of Authority: SGT Clifford Louis threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that Sgt. Louis threatened to arrest him while frisking him. Sgt. Louis denied threatening to arrest § 87(2)(b) § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation E** be **Unsubstantiated**.

Allegation F—Abuse of Authority: PO Herve Francois frisked § 87(2)(b)

Allegation G—Abuse of Authority: PO Herve Francois searched § 87(2)(b)

As § 87(2)(b) did not provide a verified statement to the investigation, it is recommended that **Allegation F and Allegation G** be closed **Victim Uncooperative**.

Allegation H—Abuse of Authority: PO Herve Francois searched § 87(2)(b) s
car.

§ 87(2)(b) stated that PO Francois opened the door of his SUV, which had tinted windows that were rolled up, and proceeded to search his car, only finding § 87(2)(b)'s firearm after a lengthy search. All other civilian witnesses corroborated that an extensive car search occurred prior to the discovery of § 87(2)(b)'s handgun and his arrest. PO Francois stated that he saw § 87(2)(b)'s handgun in the car, handcuffed § 87(2)(b) and only subsequently conducted an inventory search of § 87(2)(b)'s car at the scene. Sgt. Louis and Sgt. D'Ambrosio stated that no car search took place at the scene.

Kamins states that “under the automobile exception, the police may search a vehicle and any containers found inside when they have probable cause to believe that it contains contraband, a weapon or evidence of a crime” (encl. 1G). Kamins, New York Search and Seizure, 5-82 (2008 ed.). § 87(2)(g)

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§ 87(2)(g) it is recommended that

Allegation H be Unsubstantiated.

Allegation J—Abuse of Authority: PO Herve Francois threatened § 87(2)(b) with the use of force.

§ 87(2)(b) and § 87(2)(b) stated that PO Francois threatened to pepper-spray § 87(2)(b) but PO Francois denied this allegation. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) It is therefore recommended that **Allegation J be Unsubstantiated.**

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Investigator:		
	Signature	Print Date
Supervisor:		
	Title/Signature	Print Date
Reviewer:		
	Title/Signature	Print Date
Reviewer:		
	Title/Signature	Print Date